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CHAPTER viii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the William Brown Nimmo Charitable Trust.

[30th June 1948.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the William Brown Nimmo Charitable Trust (Amendment) Order Confirmation Act 1948. Short title.

SCHEDULE.

WILLIAM BROWN NIMMO CHARITABLE TRUST (AMENDMENT).

Provisional Order to amend the provisions of the William Brown Nimmo Charitable Trust Order 1923 relative to the application and allocation of income of the Trust Fund and for other purposes.

13 Geo. 5.
c. i.

WHEREAS the William Brown Nimmo Charitable Trust (hereinafter referred to as "the Trust") was incorporated by the William Brown Nimmo Charitable Trust Order 1923 (hereinafter referred to as "the Order of 1923"):

And whereas the Trust thereafter has been administered under the terms of the testator William Brown Nimmo's Trust disposition and settlement (hereinafter referred to as "the Trust Deed") dated the thirtieth day of May and registered in the Books of the Lords of Council and Session on the fifth day of October one thousand eight hundred and ninety-nine except in so far as expressly modified by the terms of the Order of 1923 by the Trustees incorporated by section 4 of the said Order (hereinafter referred to as "the Trustees"):

And whereas the number of grants awarded for the year ending the fifteenth day of May one thousand nine hundred and forty-seven was one hundred and seventy-eight:

9 & 10 Geo. 6.
c. 67.

And whereas as the result of the increase in basic pensions resulting from the passing of the National Insurance Act 1946 one hundred and twenty-nine of those presently in receipt of grants are now disqualified from a renewal of their grants owing to their income being above the limit provided for in the Trust Deed:

And whereas the number of new applicants whose income is within the income limit is insufficient to exhaust the revenue of the Trust:

And whereas as a result of the passing of the said National Insurance Act 1946 the social conditions have changed and there appears to be no likelihood in the future of there being sufficient applications to exhaust the benefits of the Trust:

And whereas section 18 subsection (3) of the Order of 1923 provides for the making of annual payments to persons to be selected by the Trustees from time to time as beneficiaries of the Trust in accordance with the purposes of the Trust Deed so far as those purposes are not expressly modified by the provisions of the Order of 1923 and in accordance with the said provisions:

And whereas the Trust Deed by its tenth purpose provided inter alia that the whole free income of the testator's estate or such surplus thereof as should remain in the hands of the Trustees after certain payments therein specified should be applied in giving assistance by

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way of annual payments not exceeding twenty pounds nor under ten pounds each to well-doing industrious and deserving women married or single or widows of the poorer classes not otherwise sufficiently provided for whom the Trustees might deem proper objects for such payments and as to which they should be the sole judges declaring that no one should be eligible who could earn by her own industry or who had otherwise available an annual income of thirty pounds and upwards:

And whereas the value of money in the year one thousand eight hundred and ninety-nine when the Trust Deed was registered in the books of Council and Session and in the year when the Order of 1923 was granted does not represent its value at the present day and it is now expedient that the said income limits should be raised and that the annual payments so fixed should be increased:

And whereas the value of money may change from time to time:

And whereas on account of the said restrictions contained in the Trust Deed as confirmed by the Order of 1923 a sufficient number of persons qualified to receive grants from the Trust cannot now be found:

And whereas it is expedient that the terms of the Order of 1923 should be varied so as to permit of a sufficient number of persons being qualified for the award of the annual grants:

And whereas it is expedient that section 18 subsection (3) of the Order of 1923 should be repealed and re-enacted with amendments as provided in this Order:

And whereas it is expedient that the other provisions as contained in this Order should be made:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary of State for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936: 26 Geo. 5. & 1 Edw. 8. c. 52.

Now therefore in pursuance of the powers contained in the said last-mentioned Act the Secretary of State orders as follows:—

1.—(1) This Order may be cited as the William Brown Nimmo Charitable Trust (Amendment) Order 1948. Short title and citation.

(2) This Order and the Order of 1923 may be cited together as the William Brown Nimmo Charitable Trust Orders 1923 and 1948.

2. This Order shall commence and take effect on and from the sixteenth day of May one thousand nine hundred and forty-eight. Commencement of Order.

3. In this Order the several words and expressions to which meanings are assigned by the Order of 1923 shall have the same respective meanings unless there be something in the subject or context repugnant to that construction and the following expression shall have the meaning assigned to it in this section:— Interpretation.

“The Order of 1923” means the William Brown Nimmo Charitable Trust Order 1923.

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Amendment of
subsection (3)
of section 18 of
Order of 1923.

4. Section 18 subsection (3) of the Order of 1923 is hereby repealed and the following subsection is substituted therefor:—

“ 18.—(3) In making annual payments not exceeding fifty pounds or less than twenty pounds to the persons to be selected by the Trustees from time to time as beneficiaries of the William Brown Nimmo Charitable Trust whose annual income is not in excess of seventy-five pounds in accordance with the purposes of the Trust Deed so far as those purposes are not expressly modified by the provisions of this Order and in accordance with the said provisions declaring that the Trustees or so many of them as may be entitled to act for the time being may apply to the court and that by petition disclosing the circumstances material for the consideration of the court who thereupon shall order such intimation and service as they may think fit and shall have full power and discretion to authorise the Trustees to increase or diminish for such period as may seem proper the amounts herein laid down for annual payments and to increase or diminish the amount of the income herein laid down as disqualifying applicants from receiving annual payments as they shall consider just and best for the ends uses and purposes of the Trust and the expense of any such applications and of all proceedings connected therewith shall be defrayed as the court shall direct.”

Costs of Order.

5. All costs charges and expenses of and incident to the preparing obtaining and confirming of this Order or otherwise in relation thereto shall be paid out of the revenue of the Trust Fund.

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